

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Plaintiff designates
Bronx County as the
place of trial

-----X
TOKUNBO ONILUDE,

Plaintiff,

Basis of venue is
county of occurrence

MAIL

-against-

KEITH KUCERAK and GREGORY HERNANDEZ,

SUMMONS

Defendants.

-----X

To the above named defendant(s):

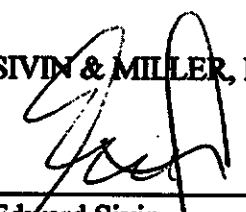
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 19, 2011

11 SEP 14 AM 9:01
COUNTY CLERK
BRONX COUNTY

SIVIN & MILLER, LLP

By


Edward Sivin
Attorneys for Plaintiff
170 Broadway, Suite 600
New York, NY 10038
(212) 349-0300

To: Keith Kucarak and Gregory Hernandez: c/o NYPD 49th Detective Squad, 2121 Eastchester Rd., Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TOKUNBO ONILUDE,

Plaintiff,

-against-

VERIFIED COMPLAINT

KEITH KUCERAK and GREGORY HERNANDEZ,

Defendants.

-----X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

1. That at all times herein mentioned, defendants were police officers employed by the New York Police Department (NYPD).
2. That at all times herein mentioned, defendants were acting with the scope and course of their employment with the NYPD, and under color of state law.
3. That at all times herein mentioned, defendants' actions were willful, intentional and malicious in nature.
4. That on or about September 16, 2008, in the County of Bronx, City and State of NY, defendants forcibly stopped, frisked and questioned plaintiff without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed any criminal offense.
5. Thereafter, defendants arrested plaintiff and forcibly transported him to the NYPD's 49th Precinct against his will, without his consent, and without being privileged to do so.
6. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing

and transacting his necessary affairs and business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

7. That the actions of defendants herein further caused plaintiff to be prosecuted for various crimes, including attempted murder, of which he was innocent, and of which defendants knew plaintiff to be innocent.

8. That as a further result thereof, plaintiff was required to appear in court to defend against these wrongful charges for a period in excess of seven months.

9. That as a further result thereof, plaintiff was wrongfully incarcerated and imprisoned until October 1, 2008.

10. That on or about April 20, 2009, all criminal charges against plaintiff were dismissed, and the criminal proceeding was terminated in plaintiff's favor.

11. That as a result of the aforesaid prosecution, plaintiff was subjected to great indignities, humiliation and ridicule, was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

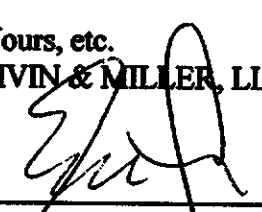
12. That the actions of defendants in wrongfully stopping and frisking plaintiff, arresting and imprisoning plaintiff, and prosecuting plaintiff for crimes of which he was innocent deprived plaintiff of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including rights guaranteed under the Fourth Amendment to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and both of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in this matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
July 19, 2011

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
170 Broadway, Suite 600
New York, NY 10038
(212) 349-0300

VERIFICATION

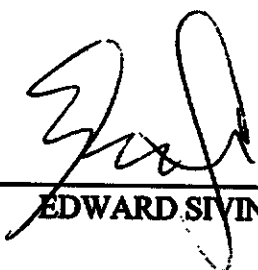
EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action. That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 19, 2011


EDWARD SIVIN

Index No.

Year 2011

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TOKUNBO ONILUDE,

Plaintiff,

-against-

KEITH KUCERAK and GREGORY HERNANDEZ,

Defendants.

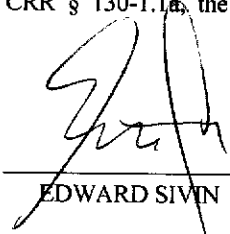
SUMMONS AND VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
170 Broadway, Suite 600
New York, NY 10038
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
July 19, 2011